

SENATE BILL 1177

By Akbari

AN ACT to amend Tennessee Code Annotated, Title 40,
Chapter 32, relative to expungements.

WHEREAS, counties with a larger population tend to face a criminal docket with many defendants, and the related records quickly accumulate and can become overly burdensome; and

WHEREAS, counties with a larger population tend to have a large staff in the court clerk's office, which enables them to process expungements with less difficulty; now, therefore,
BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-32-101(a)(1), is amended by adding the following as a new subdivision:

(G) Notwithstanding this section to the contrary, in a county having a population of three hundred sixty-six thousand two hundred (366,200) or more, according to the 2020 federal census or any subsequent federal census, court clerks are authorized to implement an automatic expungement processing program that initiates processing the expungement of public records, without petition by the person, certification under subsection (n), or order of the court, of any person entitled to an expungement without cost pursuant to subdivisions (a)(3), (e)(1), or (e)(3). Upon notice from the court clerk of an expungement under this subdivision (a)(1)(G), other agencies and officials shall treat such notice the same as the receipt of an order of expungement from the court. The court clerk shall maintain a confidential record of all cases expunged under this subdivision (a)(1)(G), which is only accessible by the person whose records were expunged, law enforcement agencies, courts, or other governmental agencies

performing official functions. Court clerks are not responsible for the continued maintenance of an expungement program under this subdivision (a)(1)(G) and are not liable for any errors or omissions under the program.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.